

FIRST INFORMATION REPORT

(Under Section 173 BNSS)

1. **District:** Bangalore **PS:** BS&FB Bangalore
Year: 2026
FIR No: RC0782026E0002 **Date:** 29/06/2026

2. **Acts & Sections:**

Acts	Sections	R/W Section
IPC	120-B	420, 467, 468 and 471
PC Act-1988 (As amended in 2018)	13(2) r/w 13(1)(d)	

3. **Suspected offences:** Bank Fraud
(a) **Occurrence of offence:**
Day: **Time Period:**
From Date: 2008 **To Date:** 2023
(b) **Information Received at PS:** CBI, BSFB, BANGALORE
Date: 17/06/2026
(c) **General Diary Reference:**
Entry No.: 09
Date: 29/06/2026 **Time:** 15:57:12

4. **Type of Information:** Written

5. **Place of Occurrence:** Bidar, Karnataka, Hyderabad, Telangana and other places

(a) **Direction & distance from PS:**
Beat No.:
(b) **Address:**
Plot No.: **Area:**
City: **Pin:**
State: **District:**
(c) **In case, outside the limit of this Police Station, then**
Name of PS: **District:**

6. **Complainant / Informant:**

Complainant 1

(a) **Name:** Mr. N Srikanth
(b) **Father's/Husband's Name:**
(c) **Date/Year of Birth:**
(d) **Nationality:** INDIAN
(e) **Passport:**

Passport No.	Date Of Issue	Place Of Issue
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(f) **Occupation:** Zonal Manager
(g) **Address:**

Plot No	Area	City	State	District	Pin
Zonal Manager, UCO Bank, Zonal Office	Road No.10, Banjara Hills	Hyderabad	Telangana	Hyderabad	500034

7. **Details of known/suspected/unknown accused with full particulars:**


29/06

Accused 1**Name:** M/s. Jupiter Bio Sciences Ltd(1)**Address:**

Regd. Office at 24,, Kolhar, IDA, Bidar, Karnataka, 585401

Corporate Office at 10-2-71, 10-2-72/1, Road No.3, West Maredpally, Secunderabad, Telangana, 500026

Accused 2**Name:** Mr.Venkat Ramana Kalavakolanu (2)**Address:**

Managing Director, M/s. Jupiter Bio Science Ltd, Secunderabad, Hyderabad, Telangana

Plot No.71, Dhanalakshmi Society, Mahendra Hills,, Secunderabad, Telangana

Accused 3**Name:** Mr.Srinivasan Chakravarthi Mandayam (3)**Address:****Accused 4****Name:** Mr.Rudolf Tanner (4)**Address:****Accused 5****Name:** Mr.Kyoganaahalli Nanjundiah Guha (5)**Address:****Accused 6****Name:** Unknown Public Servant(s) & Private Person(s)**Address:****8. Reasons for delay in reporting by the complainant/informant:**

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9. Particulars of properties stolen:

Item Name	Age of Property	Estimated Value (in INR)
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10. Total value of property stolen:**11. Inquest Report/U.D. Case No., if any:****12. First information contents:**

A written complaint dated 28.11.2024 of Shri N. Srikanth, Deputy General Manager/Zonal Manager, UCO Bank, Zonal Office, Banjara Hills, Hyderabad along with certified copies of the orders dated 05.03.2026 and 24.04.2026 passed by the Hon'ble High Court of Telangana in W.P. No.4112/2025 and Review Petition No.1/2026 respectively are being treated as part and parcel of FIR and are enclosed with this FIR.

The allegations in the complaint disclose commission of cognizable offences punishable under Sections 120-B, 420, 467, 468 and 471 IPC and Section 13(2) r/w Section 13(1)(d) of Prevention of Corruption Act, 1988 (as amended in 2018), against (i) M/s Jupiter Bio Science Ltd.; (ii) Shri Venkat Ramana Kalavakolanu; (iii) Shri Srinivasan Chakravarthi Mandayam; (iv) Shri Rudolf Tanner; (v) Shri Kyaganahalli Nanjundiah Guha; (vi) Unknown public servants and unknown others.

Hence, a Regular Case u/s 120-B, 420, 467, 468 and 471 IPC and Section 13(2) r/w Section 13(1)(d) of Prevention of Corruption Act, 1988 (as amended in 2018) is registered against the above mentioned persons and unknown public servants and unknown others and entrusted the case to Shri A. Sathiamoorthy, Addl. Supdt. of Police, CBI, BSFB, Bangalore, for investigation.

13. Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2:**(1) Registered the case and took up the investigation: Yes**

29/12

OR

(2) Directed

Name of IO:

A Sathiamoorthy

Rank:

ADDL SUPERINTENDENT OF POLICE (BS&FB Bangalore)

No:

53234

to take the investigation

OR

(3) Refused investigation due to:

OR

(4) Transferred To PS:

District:

on point of jurisdiction.

Attached documents:

Document name

Complaint of UCO Bank against Jupiter Bio Science

Order dated 24-04-2026 of High Court of Telangana

Order dated 05-03-2026 of High Court of Telangana

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant / informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant

Signature of Officer
in-charge Police Station

Name: Manjunath Singe

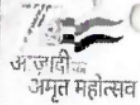
Rank: DY. INSP. GENERAL OF POLICE (BS&FB Bangalore)

15. Date and time of dispatch to the Court: 29.06.2026
18.00 hrs


29/06

MANJUNA
TH SINGE

Digitally signed by
MANJUNATH
SINGE
Date: 2026.06.29
16:37:37 +05'30'



यूको बैंक
सम्मान आपके विश्वास का
अंचल कार्यालय हैदराबाद



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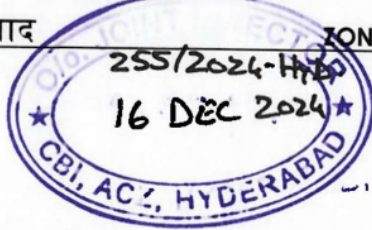


ZO/HYD/LAW/2024-25/JBL

255/2024-HYD

ZONAL OFFICE, HYDERABAD

Date: 28-11-2024



To,
The Director,
Central Bureau of Investigation,
Bank Security & Fraud cell (BS&F) Zone, 5-B
10th Floor, "B" Wing, CGO Complex,
Lodhi Road, New Delhi - 110 003,

Director CBI
Addl. Director (MS)
Office of the Director
CBI New Delhi

Sir/Madam

Dy. No. 5123-C60
Dated 10/12/24

Sub: **Submission of revised complaint as per observations raised by Investigating Officer on account of M/s Jupiter Bio Sciences Ltd of Kukatpally Branch (ID: 1906), Hyderabad**

- Ref: 1) Our complaint dated 29.04.2024 to BS&FC Zone, Delhi
2) CBI ID No. 2569/BCC/2024/E/0206 dated 02.07.2024
3) Your letter no DPHYD/C5/2024/22/BCC/RA0352024A0017/1138 dated 31.07.2024.

We invite reference to the captioned subject and your office letter vide ref: CBI ID No. DPHYD/C5/2024/22/BCC/RA0352024A0017/1138 dated 31.07.2024. We are herewith submitting revised complaint in accordance to the observations/remarks made in your said letter.

We further like to inform you that since the case against accused/borrower is already registered with CBI vide FIR no RC0352022A0007 dated 28.03.2022; we opine that obtaining the Telangana State Government permission again for the same borrow may not be necessary. Hence we request request you to kindly acknowledge the same and confirm the lodgment.

For any further/additional information is required, you may kindly contact us on 040023322596/598 and on our email id is zo.hybd@ucobank.co.in

(N.Srikanth)
DGM & ZONAL MANAGER
Zonal Office, Hyderabad
Encl: As above



Handwritten signature/initials

CBI, ACB, HYDERABAD		
HOB		
ASP		
DSP		
PA		
Accts		
Estt		
Crime		
Summ		
DO		

Central Bureau of Investigation
Office of Addl. Director (MS)

Dy. No. 779
Date 10/12/24

यूको बैंक, अंचल कार्यालय, 8-2-624, भूमि तल, रोड सं 10, बंजारा हिल्स, हैदराबाद 500034
UCO Bank, Zonal Office, 8-2-624, Ground Floor, Road No. 10, Banjara Hills, Hyderabad - 500 034
EMAIL: ZO.HYBD@UCOBANK.CO.IN, CONTACT: 040-23322345,2332,2596

ZONAL OFFICE , HYDERABAD

Ref No: ZO/HYD/LAW/2024-25/JBL

Date: 28.11.2024

To,
The Director,
Central Bureau of Investigation,
Bank Security & Fraud cell (BS& F) Zone, 5-B
10th Floor, "B" Wing, CGO Complex,
Lodhi Road, New Delhi – 110 003,

Respected Sir,

Sub: Compliant regarding the offence of Fraud committed by M/s Jupiter Biosciences Ltd account with our UCO Bank Kukatpally Branch (ID: 1906), Hyderabad

I, N Srikanth, aged about 47 years; working as Zonal Manager, UCO Bank, Zonal Office, Hyderabad, Road No.10, Banjara Hills, and Hyderabad-500034, here by lodge the complaint against M/s Jupiter Bioscience Ltd represented by its director / promoter for defrauding the Bank to a tune of **Rs.47.37 Crores** I am authorized to lodge the complaint on behalf of Bank.

UCO Bank is a body corporate constituted under the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970 having its Head Office at 10 BTM Sarani, Kolkata and a branch office amongst other places at Asset Management Branch falling under Zonal Office, Hyderabad.

Contents of Compliant to be lodged by Public Sector Banks with BS & FC CBI

1	Name of the Bank	UCO BANK
2	Name of the Branch	Base branch is Kukatpally branch (1906), Hyderabad, Later the account was transferred to Asset Management Branch (2804), Hyderabad for efficient recovery and management.
3	Date of lodging of Complaint	28.10.2024
4	Time , Date & Place of occurrence of Fraud	During the years 2008 to 2009 at Hyderabad and other place
5	Name of the Complainant	N.Srikanth, DEPUTY GENERAL MANAGER / ZONAL MANAGER, Zonal Office, Banjara Hills, Rd No 10, Hyderabad – 500 034.
6	Brief details of Fraud	M/s Jupiter Bio Sciences Private Limited incorporated on 21.12.1985 having its registered office at 24, KOLHAR, IDA, BIDAR, Karnataka-585401 and Corporate office at 10-2-71, 10-2-72/1, Road No.3, West Maredpally, Secunderabad, Telangana-500026.

ZONAL OFFICE, No : 8-2-624 , Ground Floor, Road No : 10, Banjara Hills, Hyderabad – 500 034 Phone No 040- 23324476 / 22596/ 598 ; 040- 23300/182/158 Fax No: 040- 2330-555 ; Email id – zo.hybd@ucobank.co.in

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	M/s Jupiter Bioscience is originally incorporated as private limited company on 21.02.1985, was converted in to public limited company in 1992. The company is engaged in manufacture of pharmaceutical products in the areas of peptides, advance Organic chemistry, Chiral chemistry and Biotechnology. The company has got two subsidiaries viz Sven Genetech Ltd and Jupiter Bioscience Inc USA both operating outside India. The Main Activity of the company is to manufacture of • Peptide raw materials, Intermediates and Finished active Pharmaceutical ingredients (API) Polyester yarn. • Organic Drug Intermediates and API • Specialty and Fine Chemicals. The company has been represented by its directors as under : 1. Mr. Venkat Ramana Kalavakolanu (Managing Director) 2. Mr. Srinivasan Chakravarthi Mandayam 3. Mr. Rudolf Tanner 4. Mr. Kyoganahalli Nanjundiah Guha The company had 3 manufacturing units operated at various locations such as 1. Unit-I situated at Kolhar Industrial Area, Bidar, (Karnataka) 2. Unit-II Situated at Cheryala Village, Sangareddy, Medak District (Telangana) 3. Unit-III Situated at Gaddapotharam Village, Medak District (Telangana). The Company represented by its directors had approached our Bank for availing certain credit facilities under Multiple banking Arrangement for upgrading aforementioned manufacturing units. It is further observed that based on the Net worth certificate of Mr. Venkat Ramana Kalavakolanu , dated 04-11-2008 issued by the CA Mr. Vijay Kumar A, partner for A. Vijay Kumar & Co, which purports to be a manipulated certificate, the Borrower company by producing Net worth certificate has managed to avail the said facilities.
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The Term Loans as listed below to the extent of Rs.56Cr after duly executing all necessary loan documents were availed by the borrower company.

Date	Facility	Amt (Cr)
21.06.2008	Term Loan 1	20.00
02.07.2009	Term Loan 2	21.00
03.07.2009	Corporate Loan	15.00
	Total	56.00

Initially the Term Loan of Rs.20Cr during 2008 for procurement of equipment for modernization of the unit. Again during 2009 another Term Loan of Rs. 21Cr was sanctioned to meet the sales tie up with Merck & Ranbaxy to be installed at Cheriya and Goddapothearam Units. Corporate loan of Rs.15Cr was also sanctioned to the company to meet revenue and regulatory expenses and to augment its long term working capital requirement.

The above facilities were availed by creating charge on the below securities :

• **Primary Security:**

Exclusive Charge on Modernization equipments to be raised from Term Loans & First PARRIPASSU CHARGE on all fixed assets of the company.

• **Collateral Security:** (covering both loans)

1. Exclusive Mortgage of plot of Land at Sy.No.64 admeasuring acre 1.32 guntas at Bairagiguda, under peerancheruvu gram Panchayat, Rajendernagarmandal having value of Rs.10 Cr.

2. Exclusive Mortgage of plot of Land at Sy no 281/part & 281/A admeasuring Acre 2.00 Guntas at Bowrampet Village & GP, Qutuballapur Mandal, Ranga Reddy having value of Rs.3.50 Cr.

• **Personal Guarantee of the Managing Director Mr. Kalavakolanu Venkat Ramana**



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	It is observed that the land situated at Sy.no 64 admeasuring acre 1.72 guntas at Bairagiguda, PeeramCheruvu Gram Panchayat, Rajendra Nagar mandal was valued by Mr. Satyanarayana, valuer and the same was valued Rs.6.20 Cr per acre resulting in aggregate value of Rs.10.66Cr vide his report dated 11.06.2009. The valuation of the land appears to be inflated considering then prevailing market conditions. As per information gathered the value of land is at least 40% higher than then prevailing market valuation. This implies that valuer in collusion with the Borrower has provide higher value for the property. It is further observed that the borrower company and its directors by producing all false /fabricated documents i.e. net worth certificate, colluded with the valuers in obtaining exaggerated reports / fabricated invoices, receipts of machinery equipments availed the loan. Thus the Borrower company represented by its promoters / guarantors with a malafide intention has defrauded the Bank by violating the said terms and conditions of sanction advise. It appears that the borrower company has misappropriated the funds and was not used for the purpose for which it was sanctioned. It is further observed that the borrower company has availed loans from other Banks & Financial Institutions during 2009-2010 under Multiple Banking Arrangements to the extent of Rs.291 Cr. JLM has been formed. As per the Joint Lenders meeting held on 16.12.2022, IFCI & Indian Bank informed they have already declared the account as Fraud and IFCI also lodged complaint with CBI vide FIR no RC0352022A0007 dated 28.03.2022. Accordingly our bank had allotted Forensic Audit to M/s S. Kasthuri Rengan & Co for investigating the accounts in fraud angle. Based on the findings reported in Forensic Audit Report dated 14.06.2023 Bank has declared the account as Fraud and reported to RBI ref no UCO2304-0073 dated 11.12.2023
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ZONAL OFFICE, HYDERABAD

	Status of Recovery Measures initiated by Bank: As the Borrower company failed in complying with the terms and conditions of sanction, due to non-payment of installments regularly, the loan accounts were declared NPA as per the laid down procedure of RBI/Bank's extant Policy and the balance outstanding as on date of NPA was Rs.47.37 Cr - SARFAESI action taken by issuing 13(2) notice on 03.04.2011 & 13(4) on 20.09.2011. E - auction conducted on 12.03.2013 & 23.10.2013. Two exclusive properties mortgaged to our bank were sold in e-auction for Rs.2.90Cr and proceeds were credited to loan accounts. - Suit filed in DRT of amount Rs.48.25 Cr with OA No. 554/2011(New OA 410/2017). OA was allowed on 23.11.2017 & RC No. 2894/2017 was issued by DRT, Hyderabad.RO -2. On behalf all lenders, IFCI initiated recovery proceedings under SARFAESI and had published auction sale notice for sale of factory land and building and plant and machinery on 10-04-2013. IFCI auctioned Unit-II and Unit-III and collected Rs.6.59Cr out of which received our Bank share of Rs.0.84Cr on 05-06-2014. The Winding up petition was filed by State Bank of Mysore on 12.05.2014. Official Liquidator has been appointed by Hon'ble High Court of Karnataka. The property at Bidar, Karnataka (Unit-I) was taken over by the Official Liquidator on 24-03-2017 as per the order of High Court of Karnataka dated 09-03-2017. Findings of Forensic Audit conducted by M/s S Kasthurirangan & Co - Forensic auditor M/s S Kasthurirangan & Co was appointed and has submitted his report on 14.06.2023. It is observed from the report that the aforementioned loans were availed by the borrower by producing all fake and
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ZONAL OFFICE , HYDERABAD

		fabricated quotations / proforma invoices. The loans were disbursed on single day/ two days on lump sum and indicate that the loans were not utilized for the purposes it is meant for. As per the proforma invoices, none of the suppliers were located at any point of time earlier. • Further observed that the land situated at Sy.no 64 admeasuring acre 1.72 guntas at Bairagiguda, PeeramCheruvu Gram Panchayat, Rajendra Nagar mandal was valued by Mr. Satyanarayana, valuer and the same was valued Rs.6.20 Cr per acre resulting in aggregate value of Rs.10.66Cr vide his report dated 11.06.2009. The valuation of the land appears to be inflated considering then prevailing market conditions. As per information gathered the value of land is at least 40% higher than then prevailing market valuation. This implies that valuer in collusion with the Borrower has provide higher value for the property. • Term loans were disbursed on single day/two days on lump sum as per the Term Loan statement which prima facie indicates that loans were not utilised for the purpose it meant for. Corporate Loan which meant to meet expenditure was disbursed/ utilised in two trenches which indicates the same was not utilised for the purpose it meant for. It is evident from the Forensic Audit report that M/s Jupiter Bio Sciences Ltd has fraudulently availed various credit facilities up to Rs.56 Cr by submitting fake / fabricated quotations and proforma invoices which facilitated them to divert the funds at the time of disbursement and also manipulated the valuations reports on the collaterals offered which resulted in loss to the bank to the extent of Rs.47.37Cr\$ excluding interest and other charges as applicable from time to time.
7	Name of the accused person(s)	Accused 1 Name: M/s Jupiter Bioscience Ltd represented by its Directors



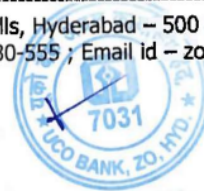
ZONAL OFFICE , HYDERABAD

		Address: #Registered office at No.24, kolhar IDA, Bidar-585404(Karnataka) & #Corporate office at 10-2-71, 10-2-72/1, Road No.3, West maredpally, secunderabad-500026 (Telangana) Accused 2 Name: Mr. Venkat Ramana Kalavakolanu (Managing Director) PAN : ABDPV7649A #Address: Plot No 71, Dhanalakshmi Society, Mahendra Hills, Secunderabad. Accused : 3 Name: Mr. Srinivasan Chakravarthi , , Mandayam, DIN - 00125504 , s/o not known r/o not known. Accused : 4 Name: Mr. Rudolf Tanner DIN – 00323714, s/o not known r/o not known. Accused:5 Name: Mr. Kyoganahalli NanjundiahGuha DIN- 00580848 , s/o not known r/o not known. Accused :6 Unknown public servants and others
8	Role of accused person(s) including the role of public servants(s)	The borrower company represented by its Managing Director Mr. Kalavakonula Venkata Ramana along with other Directors defrauded the Bank by producing fake and fabricated quotations / proforma invoices and by producing inflated valuation reports of collateral securities offered , had dishonestly cheated, misappropriated / diverted the funds by breaching the trust and violating the sanction terms and conditions, thereby causing wrongful loss to the Bank and wrongful gain to themselves which involves public money.
9	Grave Irregularities committed by public servant(s)	The Bank is uncertain about the role of its official and hence it is requested to examine the involvement of the unknown public servants during the investigation of crime.



ZONAL OFFICE , HYDERABAD

10	Role of common conspirators	Mr. Kalavakonula Venkata Ramana – DIN – 00176000 Mr. Srinivasan Chakravarthi Mandayam DIN - 00125504 Mr. Rudolf Tanner DIN – 00323714 Mr. Kyoganahalli Nanjundiah Guha DIN- 00580848
11	The names and address of prosecution witnesses	Mr. Rajesh S Visale presently working as Assistant General Manager / Branch Head , Asset Management Branch, #6-3-1108, Ground Floor, Navabharath Chambers, Raj Bhavan Road, Somajiguda, Hyderabad-500 082.
12	Action taken by the Bank against Public servants (s) including departmental proceedings initiated. If so, details thereof.	Prima facie no staff / official of the Bank is involved in the fraud / commission of offence(s)
13	Whether investigation conducted by the Bank. If yes, details of the major findings	Internal investigation conducted and reported no staff side lapses.
14	Availability of Original documents	All the relevant Original documents are available with our Asset Management Branch Hyderabad and are under safe custody.
15	Whether accused persons were involved in any other fraud on the Bank on an earlier occasion	Yes. FIR U/S 154 C.R.P.C for criminal conspiracy, cheating, and criminal misconduct filed by IFCI LTD. Vide FIR No. RC0352022A0007 Dt: 28.03.2022
16	Whether Fraud has Interstate, International ramification. If yes, give the details.	NA
17	Whether Registration is authorized by CVO of the Bank	N.A, as the amount involved is less than Rs.50 Cr.
18	Any other information	A Show-Cause Notice has been issued to the borrower/guarantor on 11.09.2023 before declaring the account as fraud as per the bank's SOP guidelines and further intimation has been served to the borrower/guarantor after reporting the account to RBI. However no response was received from the borrower against the above mentioned communications dispatched to the addresses available as per bank's records and all of them were returned. We further like to inform that the proposed accused/borrower was accorded appropriate opportunity to respond to the allegations in the



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	mentioned complaint. However since no reply received from the accused, The instant complaint is being submitted based on findings of the Forensic Audit Report. We further inform that in terms of Office Memorandum issued by Ministry of Home Affairs in 2018, Bank issued Look Out Notice against Mr. Kalavakonula Venkata Ramana. Since an FIR against the accused has already been registered, in line with IFCI's CBI complaint, our complaint may be considered, and also request for issuance of Look Out Notice against them.
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Under the facts & circumstances and for the reasons aforesaid, the present complaint is being lodged in the commission of serious offences committed by accused persons in Point(7) above, by way of criminal conspiracy hatched in collusion/connivance with the unknown public servants and other unknown persons to cause unjust and illegal gains to themselves and wrongful loss to the tune of **Rs.47.37Cr**s to UCO Bank based on dishonest, fraudulent and intentional deception as well as concealment, misappropriation and suppression of vital facts for misappropriation of public money caused by above named persons and they have committed the offences of cheating, criminal breach of trust, misappropriation / diversion of funds.

We request you to register our complaint, record F.I.R. investigate into the matter, book the culprits for the various offences committed by them and initiate appropriate criminal proceedings / action against them in accordance with law. A copy of the F.I.R. is requested to be furnished to us for our records.

Copy of ABBFF opinion is enclosed herewith for your perusal.

All the required documents and Information related to the case which may be required by your office for conducting Investigation will be provided as and when called for.



(N. Srikanth)
UCO BANK, ZONAL OFFICE,
No: 8-2-624, Ground Floor,
Road No: 10, Banjara Hills,
Hyderabad – 500 034



ZONAL OFFICE , HYDERABAD

Annexure- I

The details of the borrower firm loan accounts are hereunder:

Sr.No.	Type of Party	Name of Party/account	Party Address
1	Limited Company	JUPITER BIO-SCIENCES LTD	#Registered office at No.24, kolhar IDA, Bidar-585404(Karnataka) & #Corporate office at 10-2-71, 10-2- 72/1, Road No.3, West maredpally, secunderabad-500026 (Telangana)

Nature of Advances / Sanction of loan Particulars are here under:

Party Sr.No.	Name Party/account	Borrowal account Sr.No.	Nature of Account	Date of Sanction	Sanctioned limit (Rs.Cr)	Balance outstanding as on Date of NPA 31.03.2011 (Rs.Cr)
1	JUPITER BIO-SCIENCES LTD.	19060610001257	TL	25.06.2008	20.00	12.21
2		19060610002223	TL	02.07.2009	21.00	20.27
3		19060610002230	TL	03.07.2009	15.00	14.89
				Total	56.00	47.37

Details of loans availed from other Banks/FIs (Rs. in Cr.)

*As per the Exchange of Information data available with the branch

S.N.	Bank's/FI's	Limit (Amt in Rs. Cr)*
i	IFCI	56.01
ii	LICI	47.17
iii	Rabo Finance India	27.40
iv	PNB International LTD	42.54
v	SBM	18.81
vi	CSB	22.12
vii	CBI	28.19
viii	DBS Bank	8.61
ix	Indian Bank	3.21
x	IDBI Bank	3.21
xi	ING Vysya Bank	26.86
xii	KVB	7.41

ZONAL OFFICE, No : 8-2-624 , Ground Floor, Road No : 10, Banjara Hills, Hyderabad – 500 034 Phone No
040- 23324476 / 22596/ 598 ; 040- 23300/182/158 Fax No: 040- 2330-555 ; Email id – zo.hybd@ucobank.co.in

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Details of the borrower firm represented by its Directors / Partners are given below

Sr.No.	Name of Director/Proprietor		PAN	Address
1	Mr. VenkatRamanaKalavakolanu	Managing Director	ABDPV7649A	Plot No 71, Dhanalakshmi Society, Mahendra Hills, Secunderabad.
2	Mr. Srinivasan Chakravarthi Mandayam	Director	Not Available	---not on records---
3	Mr. Rudolf Tanner	Director	Not Available	---not on records---
4	Mr. Kyoganahalli NanjundiahGuha	Director	Not Available	---not on records---

Security Details:

Primary Security:

Exclusive Charge on Modernization equipments to be raised from Term Loans sanctioned by the Bank	First PARRIPASSU CHARGE on all fixed assets of the company.
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Collateral Security						(Rs. in Cr.)
*RV: Realizable Value , **MV : Market Value)						
S.N	Particulars/description of Collateral security	At the time of sanction Date 02.06.2009		As per latest available Date 15.09.2011		If consortium, our share in VOS
		RV*	MV**	RV*	MV**	
1	Land with Sno 64. Admeasuring Acre 1.29 guntas at Bairagiguda Village under Peerancheru gram panchayat, Rajendra nagar Mandal, Ranga Reddy District with Sale deed no 144/2009 dated 17.01.2009 in favour of Mr.Venkat Ramana Kalavakolanu		10.62 Valuation by Mr.M. Satyanarayana on 11.06.2009		2.15 Valuation by M/s Suvela Associates on 09.09.2011 2.58 Valuation by Mr.Pradeep Kaparthy on 15.09.2011	



ZONAL OFFICE , HYDERABAD

					Avg Rs. 2.36	
2	Open Plot of land at Sno 281/part & 281/A admeasuring Acre 2.00 Guntas at Bowrampet Village & GP, Qutuballapur Mandal, Ranga Reddy with Sale deed no 777/2008 dated 21.01.2008 in favour of Mr.Venkat Ramana Kalavakolanu		3.50 Valuation by M/s Suvela Associates dated 01.01.2009		1.10 Valuation by Mr.Pradeep Kaparthi dated 10.08.2013 1.70 Valuation by M/s Ravle & Associates dated 17.09.2013 Avg Rs. 1.40	
	TOTAL		14.12		3.76	

**** The above two properties were sold in e-Auction under SARFAESI proceedings as Property-1 for Rs.1.70 Cr on 12.03.2013 and Property-2 for Rs.1.20 Cr on 24.10.2013**



बैंकिंग और वित्तीय धोखाधड़ी सलाहकार बोर्ड
ADVISORY BOARD FOR BANKING AND FINANCIAL FRAUDS

Meeting Date : November 08, 2024

Case Final Ref No : UCO/2024/007

ADVICE OF ABBFF

A/c M/s Jupiter Bio Science Limited

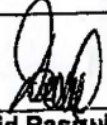
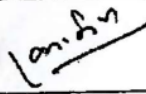
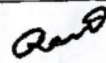
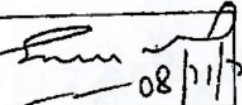
UCO Bank

The CVO of the UCO Bank made a presentation on the detailed case papers which had been previously submitted to the ABBFF by e-mail / hardcopies.

CVO informed that no UCO Bank officials have been identified with any lapses during the internal investigation by the Bank. IAC opined that Vigilance & criminality angle is not discernible on the part of Bank officials. CVO concurred with the views of the IAC. CVO also informed that CBI complaint has been filed in the case on 29.04.2024.

During the meeting, CVO also informed that a fire accident occurred at the concerned Branch in September, 2013 which destroyed almost all the records of this account. Hence, establishing criminality against staff members is not possible in the absence of records.

Based on the facts put forth, presentation made by the CVO, and following deliberations / discussions, the Advisory Board, observed that there does not appear to be prima facie criminal or mala fide intent on the part of the officials of the UCO Bank. In respect of any procedural and operational lapses identified, appropriate disciplinary proceedings would be the responsibility of the UCO Bank.

			 08/11/2024
(David Rasquinha) Member	(Rajni Kant Mishra) Member	(Ravikant) Member	(Suresh N. Patel) Chairman

DATE : November 08, 2024

PLACE : ABBFF Secretariat, New Delhi

COPY TO:

1. The Managing Director & CEO, UCO Bank
2. The CVO, UCO Bank
3. The Secretary, CVC, New Delhi
4. The Special Director, CBI, New Delhi



बैंकिंग और वित्तीय धोखाधड़ी सलाहकार बोर्ड
ADVISORY BOARD FOR BANKING AND FINANCIAL FRAUDS

DEL.ABBFF.No. 473 /2024-25

November 08, 2024

The CVO
UCO BANK,
H.O.10, BTM SARANI,
KOLKATA - 700001

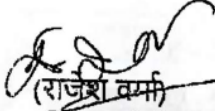
Dear Sir,

Reference to ABBFF by UCO Bank: -
M/s Jupiter Bio Science Limited

CVO, UCO Bank made a presentation before the Board on **November 08, 2024** on the captioned case. In this regard, the advice of the Board is enclosed for your information.

यूको बैंक के सीव्हीओ ने उक्त मामले पर 08 नवम्बर 2024 को बोर्ड के समक्ष एक प्रेजेंटेशन दिया। इस संबंध में, आपकी जानकारी के लिए बोर्ड की सिफारिश संलग्न है।

भवदीय,


(राजेश वर्मा)
सचिव, एबीबीएफएफ

संलग्न: यथोक्त

बैंकिंग और वित्तीय धोखाधड़ी सलाहकार बोर्ड,
c/o. भारतीय रिज़र्व बैंक, पर्यवेक्षण विभाग (बैंकिंग), 6 संसद मार्ग, नई दिल्ली -110001, भारत
फोन: (011) 2371 6289 ई-मेल: abbf@rbi.org.in

Advisory Board for Banking and Financial Frauds
C/o. Reserve Bank of India, Department of Supervision (Banking), 6, Sansad Marg, New Delhi-
110001, India
Ph: (011) 2371 6289 E-Mail: abbf@rbi.org.in



UDC
46
8/6/2026
B. K. SINGH
SP, CBI, BCC, NEW DELHI

IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD
(Special Original Jurisdiction)

FRIDAY, THE TWENTY FOURTH DAY OF APRIL
TWO THOUSAND AND TWENTY SIX

PRESENT

THE HONOURABLE SRI JUSTICE NAGESH BHEEMAPAKA

REVIEW PETITION No.: 1 OF 2026

IN

WRIT PETITION NO: 4112 OF 2025

Between:

1. The Central Bureau of Investigation (CBI), Kendriya Sadan, 3rd, Sultan Bazar Road, Koti, Hyderabad-500 095, Rep. by Head of Branch and DIG.
2. The Superintendent of Police, Bank Complaint Cell, C.B.I Head Office, 5th Floor, CGO Complex, Lodhi Road, New Delhi - 110003.

...Review Petitioner/Respondent No.3 & 4

AND

1. M/s. UCO Bank, Having its head office at 10 BTM Sarani, Kolkata And having its branch office at H.No. 8-2-624, Ground floor, Road No. 10, Banjara Hills, Hyderabad-500 034 Rep., by Zonal Manager, Mr.N.Srikanth.

...Respondent/Petitioner

2. The State of Telangana, Rep. by its Principal Secretary, Home Department, Secretariat, Hyderabad.
3. The Director General of Police, Telangana State, Hyderabad.

...Respondent No.2 & 3/Respondent No.1 & 2

4. M/s Jupiter Bio Sciences Limited, Represented by its Director, 10-2-71, 10-2-72/1, Road No. 3, West Maredpally, Secunderabad, Telangana State 500 026. Also at 24, Kolhar, IDA Bidar, Karnataka 585401.
5. Mr. Kaluvakolanu Venkata Ramana, Managing Director, DIN 00176000 M/s Jupiter Bio Sciences Ltd., Aged major, Occ Business R/o Plot No. 71, Dhanalaxmi Society, Mahendra Hills, Secunderabad 26.
6. Kyoganahalli Nanjundiah Guha, Director, DIN 00580848, M/s Jupiter Bio Sciences Ltd., Aged major, Occ Business, 10-2-71, 10-2-72/1, Road No. 3, West Maredpally, Secunderabad, Telangana State 500 026.

7. Rudolf Tanner, Director, DIN 00323714, M/s Jupiter Bio Sciences Ltd., Aged major, Occ Business, 10-2-71, 10-2-72/1, Road No. 3, West Maredpally, Secunderabad, Telangana State 500 026.
8. Srinivasan Chakravarthi Mandayam, Director, DIN 00125504, M/s Jupiter Bio Sciences Ltd., Aged major, Occ Business, 10-2-71, 10-2-72/1, Road No. 3, West Maredpally, Secunderabad, Telangana State 500 026.

Respondents Nos.5 to 9 are impleaded as per C.O. dt.21.04.2025 in IA. No. 3/2025.

...Respondent No.4 to 8/Respondent No.5 to 9

Petition under Section 114 RAW order XLVII of CPC.1908 praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to review the order dated: 05.03.2026 passed in WP No. 4112 of 2025, may pass order directing CBI to register the case and conduct investigation without there being any requirement of consent u/s 6 of DSPE Act from State Government, in the interest of justice.

Counsel for the Petitioners: SRI T. SRUJAN KUMAR REDDY (SPECIAL POLICE PROTECTION FORCE CBI)

Counsel for the Respondent No.1: SRI G. KALYAN CHAKRAVARTHY(STANDING COUNCIL FOR BANK)

Counsel for the Respondent No.2 & 3: GP FOR HOME

Counsel for the Respondent No.4: - - - -

The Court made the following: ORDER

IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD

THE HON'BLE SRI JUSTICE NAGESH BHEEMAPAKA

REVIEW PETITION No. 1 of 2026

In

WRIT PETITION No. 4112 of 2025

24th April, 2026

Between:

The Central Bureau of Investigation, and another

... Review Petitioners

AND

M/s UCO Bank, and others

... Respondents

ORDER:

This review petition is filed seeking review of the Order dated 05.03.2026 passed by this Court in W.P. No. 4112 of 2025. The review petitioners herein are respondents Nos. 3 and 4 in the writ petition.

2. Briefly stated, the matter relates to an alleged loan fraud involving UCO Bank and a company named M/s Jupiter Bio Sciences Limited. The Bank alleged that the borrower misused loan funds by submitting fabricated invoices and inflating property valuations, resulting in a loss of approximately Rs. 47 crores. When the Bank approached the CBI (review petitioner No. 1 herein) to register a complaint, the CBI declined the request,

citing technical deficiencies and the absence of general consent from the State of Telangana for conducting investigations. Challenging the same, the Bank filed W.P. No. 4112 of 2025 before this Court.

2.1. This Court allowed the writ petition by Order dated 05.03.2026, holding that procedural and jurisdictional issues should not obstruct the investigation of serious financial crimes, and accordingly directed the CBI to take appropriate steps, including seeking consent from the State Government, to formally register the complaint and proceed with a comprehensive criminal investigation. Aggrieved thereby, the review petitioners (CBI) seek review of the Order dated 05.03.2026 passed in the writ petition.

3. Heard Mr. T. Srujan Kumar Reddy, learned Special Public Prosecutor for the review petitioners/CBI; Mr. G. Kalyan Chakravarthy, learned Standing Counsel for the respondent/Bank; and the learned Government Pleader for Home for respondents Nos. 1 and 2.

4. The learned Special Public Prosecutor contends that there is no general consent from the State of Telangana for conducting investigations; and that seeking consent under Section 6 of the Delhi Special Police Establishment Act, 1946, in the facts of the present case, would impose additional hardship upon the petitioners by way of procedural difficulties and rigmarole.

4.1. The learned Special Public Prosecutor contends that it is settled law that this Court under Article 226 of the Constitution can grant permission to the review petitioners/CBI proceed with the registration and investigation of a case, without the requirement of obtaining specific consent

under Section 6 of the Delhi Special Police Establishment Act, 1946 from the State Government.

4.2. It is further contended that the review petitioners are not arguing on the merits of the matter in the present review petition, and that the relief sought herein does not amount to a rehearing on merits. It is submitted that no prejudice would be caused to any of the parties if the requirement of obtaining consent from the State Government is waived, enabling the review petitioners to proceed with the registration and investigation of the case forthwith, without any further delay.

5. The learned Standing Counsel for the respondent/Bank contends that the Bank has informed the RBI about the fraud and has also requested the review petitioners to register a complaint. It is submitted that obtaining all necessary permissions for investigation into the fraud rests with the review petitioners/CBI.

6. Having considered the respective submissions and upon perusal of the record, it is to be noted that, as per the settled law laid down in *Sanjay Kumar Agarwal v. State Tax Officer*¹, the scope of review jurisdiction is limited to the correction of an error apparent on the face of the record, and a review petition cannot be reheard on merits as if it were an appeal.

7. In the present case, the review petitioners seek dispensing with the requirement of obtaining specific consent of the State Government under Section 6 of the DSPE Act for registering the case and conducting the investigation, by exercising the powers of this Court under Article 226 of the Constitution.

¹ (2024) 2 SCC 362

7.1. In this connection, it is relevant to refer to the law laid down by the Hon'ble Supreme Court in *State of W.B. v. Committee for Protection of Democratic Rights*², wherein the Hon'ble Supreme Court held that Constitutional Courts, under Articles 32 and 226 of the Constitution, have overarching powers and, in a given case, the Constitutional Courts can direct the CBI to proceed with the registration and investigation of a crime without seeking specific consent of the State Government, and such exercise of power cannot be curtailed or restrained by any statute. It was further held that such directions would not amount to an infringement of either the doctrine of separation of powers or the federal structure envisaged by the Constitution.

7.2. It is relevant to refer to paragraphs 68(vii) and 69 of *Committee for Protection of Democratic Rights* (supra), wherein the Hon'ble Supreme Court observed as follows:

- "68. (i) ...
(ii) ...
(iii) ...
(iv) ...
(v) ...
(vi) ...

(vii) When the Special Police Act itself provides that subject to the consent by the State, CBI can take up investigation in relation to the crime which was otherwise within the jurisdiction of the State police, the Court can also exercise its constitutional power of judicial review and direct CBI to take up the investigation within the jurisdiction of the State. The power of the High Court under Article 226 of the Constitution cannot be taken away, curtailed or

² (2010) 3 SCC 571

diluted by Section 6 of the Special Police Act. Irrespective of there being any statutory provision acting as a restriction on the powers of the Courts, the restriction imposed by Section 6 of the Special Police Act on the powers of the Union, cannot be read as restriction on the powers of the constitutional courts. Therefore, exercise of power of judicial review by the High Court, in our opinion, would not amount to infringement of either the doctrine of separation of power or the federal structure.

69. In the final analysis, our answer to the question referred is that a direction by the High Court, in exercise of its jurisdiction under Article 226 of the Constitution, to CBI to investigate a cognizable offence alleged to have been committed within the territory of a State without the consent of that State will neither impinge upon the federal structure of the Constitution nor violate the doctrine of separation of power and shall be valid in law. Being the protectors of civil liberties of the citizens, this Court and the High Courts have not only the power and jurisdiction but also an obligation to protect the fundamental rights, guaranteed by Part III in general and under Article 21 of the Constitution in particular, zealously and vigilantly."

8. From a perusal of the grounds raised in the review petition, and also considering the arguments advanced, this Court is of the considered opinion that the review petition neither touches upon the merits of the case, nor amounts to reappreciation of evidence or rehearing of the matter. Further, the prayer made is innocuous and no prejudice would be caused to either of the parties if the present review petition is allowed, thereby enabling the review petitioners to register the case and take up investigation forthwith. by dispensing with the requirement of obtaining specific consent of the State Government, having regard to the facts and circumstances of the case. In that view of the matter, this Court is inclined to allow the review petition.

9. Accordingly, the review petition is allowed, and the requirement of review petitioners with regard to obtaining consent under Section 6 of the DSPE Act, from the State Government is waived. The review petitioners shall forthwith take appropriate further action for registering the case and conducting investigation in accordance with law. No costs. Miscellaneous petitions, if any pending, shall stand closed.

SD/- A.SREENIVASA REDDY
ASSISTANT REGISTRAR

//TRUE COPY//

SECTION OFFICER

To.

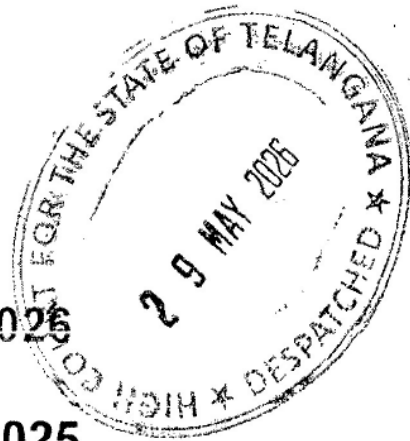
1. The Principal Secretary, Home Department, The State of Telangana, Secretariat, Hyderabad.
2. The Director General of Police, Telangana State, Hyderabad.
3. The Head of Branch and DIG, The Central Bureau of Investigation (CBI), Kendriya Sadan, 3rd, Sultan Bazar Road, Koti, Hyderabad-500 095.
4. The Superintendent of Police, Bank Complaint Cell, C.B.I Head Office, 5th Floor, CGO Complex, Lodhi Road, New Delhi - 110003.
5. The Director, M/s Jupiter Bio Sciences Limited, 10-2-71, 10-2-72/1, Road No. 3, West Maredpally, Secunderabad, Telangana State 500 026. Also at 24, Kolhar, IDA Bidar, Karnataka 585401.
6. Mr. Kaluvakolanu Venkata Ramana, Managing Director, DIN 00176000 M/s Jupiter Bio Sciences Ltd., Aged major, Occ Business R/o Plot No. 71, Dhanalaxmi Society, Mahendra Hills, Secunderabad 26.
7. Kyoganahalli Nanjundiah Guha, Director, DIN 00580848, M/s Jupiter Bio Sciences Ltd., Aged major, Occ Business, 10-2-71, 10-2-72/1, Road No. 3, West Maredpally, Secunderabad, Telangana State 500 026.
8. Rudolf Tanner, Director, DIN 00323714, M/s Jupiter Bio Sciences Ltd., Aged major, Occ Business, 10-2-71, 10-2-72/1, Road No. 3, West Maredpally, Secunderabad, Telangana State 500 026.
9. Srinivasan Chakravarthi Mandayam, Director, DIN 00125504, M/s Jupiter Bio Sciences Ltd., Aged major, Occ Business, 10-2-71, 10-2-72/1, Road No. 3, West Maredpally, Secunderabad, Telangana State 500 026.
10. One CC to SRI G. KALYAN CHAKRAVARTHY, Standing Council for UCO Bank.
11. Two CCs to GP FOR HOME High Court for the State of Telangana, at Hyderabad [OUT]
12. One CC to SRI T. SRUJAN KUMAR REDDY (SPECIAL POLICE PROTECTION FORCE CBI)

HIGH COURT

DATED: 24/04/2026

ORDER

**REVIEW PETITION No.: 1 OF 2026
IN
WRIT PETITION NO: 4112 OF 2025**



ALLOWING THE REVIEW PETITION

(16)

lps

29/5/26

IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD
(Special Original Jurisdiction)

THURSDAY, THE FIFTH DAY OF MARCH
TWO THOUSAND AND TWENTY SIX

PRESENT

THE HONOURABLE SRI JUSTICE NAGESH BHEEMAPAKA

WRIT PETITION NO: 4112 OF 2025

Between:

M/s. UCO Bank, Having its head office at. 10 BTM Sarani, Kolkata And having its branch office at H.No. 8-2-624, Ground floor, Road No. 10, Banjara Hills, Hyderabad-500 034 Rep., by Zonal Manager, Mr.N.Srikanth.

..PETITIONER

AND

1. The State of Telangana, Rep. by its Principal Secretary, Home Department, Secretariat, Hyderabad.
2. The Director General of Police, Telangana State, Hyderabad.
3. The Central Bureau of Investigation (CBI), Kendriya Sadan, 3rd, Sultan Bazar Road, Koti, Hyderabad-500 095; Rep. by Head of Branch and DIG.
4. The Superintendent of Police, Bank Complaint Cell, C.B.I Head Office, 5th Floor, CGO Complex, Lodhi Road, New Delhi - 110003.
5. M/s Jupiter Bio Sciences Limited, Represented by its Director, 10-2-71, 10-2-72/1, Road No. 3, West Maredpally, Secunderabad, Telangana State 500 026. Also at 24, Kolhar, IDA Bidar, Karnataka 585401.
6. Mr. Kaluvakolanu Venkata Ramana, Managing Director, DIN 00176000 M/s Jupiter Bio Sciences Ltd., Aged major, Occ Business R/o Plot No. 71, Dhanalaxmi Society, Mahendra Hills, Secunderabad 26.
7. Kyoganahalli Nanjundiah Guha, Director, DIN 00580848, M/s Jupiter Bio Sciences Ltd., Aged major, Occ Business, 10-2-71, 10-2-72/1, Road No. 3, West Maredpally, Secunderabad, Telangana State 500 026.
8. Rudolf Tanner, Director, DIN 00323714, M/s Jupiter Bio Sciences Ltd., Aged major, Occ Business, 10-2-71, 10-2-72/1, Road No. 3, West Maredpally, Secunderabad, Telangana State 500 026.
9. Srinivasan Chakravarthi Mandayam, Director, DIN 00125504, M/s Jupiter Bio Sciences Ltd., Aged major, Occ Business, 10-2-71, 10-2-72/1, Road No. 3, West Maredpally, Secunderabad, Telangana State 500 026.

Respondents Nos.5 to 9 are impleaded as per C.O. dt.21.04.2025 in IA. No. 3/2025.

Petition under Article 226 of the Constitution of India praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to issue an order, direction or Writ, more in the nature of a writ of mandamus declaring the action of the respondents No. 3 and 4 in not registering a case on complaint of petitioner dated 28/11/2024 made in terms of Guideline No. 6.1 of Master Circular bearing No RBI/DB S/2016-17/28 (DBS.CO.CFMC.BC.No.1/23.04.001/2016-17) dated 01/07/2016 on the ground of withdrawal of consent under section 6 of Delhi Special Police Establishment Act, vide G.O.Ms. No. 51, dated 30/08/2022, by respondent No. 1 as illegal, arbitrary, and highhanded, apart from being violative of article 14 of the Constitution of India and consequently to direct the 3rd respondent to register the case on the complaint of the petitioner dated 29/04/2024 and 28/11/2024 in terms of Master Circular bearing No. RBI/2024-25/118 (DOS. CO. FMG. SEC. No.5 /23.04.001/2024-25) dated 15/07/2024 and investigate the same in accordance with law.

IA NO: 1 OF 2025

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to direct respondent No. 1 to issue consent under section 6 of Delhi Special Police Establishment Act, by way of G.O to the respondent No. 3 to register and investigate the complaint of the petitioner dated 28/11/2024 in terms of RBI Master Circular bearing No. RBI/DBS/2016-17/28 (DBS.CO.CFMC.BC.No.1/23.04.001/ 2016-17) dated 01/07/2016.

IA NO: 2 OF 2025

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to receive the additional affidavit and same be placed on record along with the main writ petition.

Counsel for the Petitioner: SRI G. KALYAN CHAKRAVARTHY

Counsel for the Respondent No.1 & 2: GP FOR HOME

**Counsel for the Respondent No.3 & 4: SRI P. SUJAN KUMAR REDDY,
SC FOR CBI**

Counsel for the Respondent No.5 to 9: - - - -

The Court made the following: ORDER

**IN THE HIGH COURT FOR THE STATE OF TELANGANA AT
HYDERABAD**

HON'BLE SRI JUSTICE NAGESH BHEEMAPAKA

WRIT PETITION No. 4112 OF 2025

05.03.2026

Between:

M/s UCO Bank,
Rep. by Zonal Manager Mr. N. Srikanth

.. Petitioner

And

The State of Telangana,
Rep. by its Principal Secretary,
Home Department & others

..Respondents

ORDER:

The case of Petitioner is that it is a body corporate constituted under the provisions of the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970, having its Head Office at 10, BTM Sarani, Kolkata, and *inter alia* a Zonal Office at Road No.10, Banjara Hills, Hyderabad 500 034, with an Asset Management Branch falling under the said Zonal Office. It is stated, M/s Jupiter Bio Sciences Limited (hereinafter referred to as "the Company"), incorporated on 21.12.1985, having its registered office at 24, Kolhar, IDA Bidar, Karnataka-585401 and corporate office at 10-2-71, 10-2-72/1,

Road No.3, West Maredpally, Secunderabad 500 026, maintained its account with Petitioner Bank at its Kukatpally Branch.

1.1. Petitioner states that the Company was originally incorporated as a private limited company on 21.02.1985 and was converted into a public limited company in 1992. The Company is engaged in the manufacture of pharmaceutical products in the areas of peptides, advanced organic chemistry, chiral chemistry and biotechnology. The Company has two subsidiaries, namely Vix Sven Genetech Ltd and Jupiter Bioscience Inc., USA, both operating outside India. It also engaged in manufacture of peptide raw materials, intermediates and finished active pharmaceutical ingredients (A.P.L.), polyester yarn, organic drug intermediates and A.P.I., and specialty and fine chemicals. The Company had three manufacturing units located at Kolhar Industrial Area, Bidar (Karnataka), Cheryala Village, Sangareddy District, Telangana State and Gaddapotharam Village, Medak District, Telangana State.

1.2. It is contended, the Company obtained two term loans and one corporate loan aggregating to Rs.56 crores during 2008 and 2009. Term Loan-1 aggregating to Rs.20 crores was

obtained on 21.06.2008. The second term loan aggregating to Rs.21 crores was obtained on 02.06.2009. The third loan in the form of a corporate loan aggregating to Rs.15 crores was also obtained on 02.06.2009. As security for the said loans, the Company mortgaged its modernized equipment and all fixed assets on a pari passu charge basis as primary security. As collateral security, land in Sy.No.64 admeasuring Ac. 1.32 guntas situated at Bairagiguda Village, Rajendranagar Mandal, valued at Rs.10 crores, and land in Sy.No.281/part and 281/A admeasuring Ac.2.00 guntas situated at Bowrampet Village valued at Rs.3.50 crores were mortgaged. Apart from the above, personal guarantees of the Managing Director, Mr. Kalavakolannu Venkat Ramana, and others were furnished.

1.3. Petitioner states that loans obtained in the years 2008 and 2009 were classified as Non-Performing Assets on 31.03.2011 and the total due amount as on that date aggregated to Rs.47.37 crores, excluding applicable interest and other charges. They therefore, invoked the provisions of the SARFAESI Act by issuing notice under Section 13(2) on 03.04.2011 and thereafter, notice under Section 13(4) on 20.09.2011. Pursuant to the notice under Section 13(4), e-auction notices were issued with regard to two properties

4

given as collateral security and e-auctions were conducted on 12.03.2013 and 23.10.2013. By virtue of the said e-auctions, the Bank realized a sum of Rs.2.90 crores from the sale of the two collateral properties, which amount was appropriated to the loan account.

1.4. For the remaining outstanding due of Rs.48.25 crores, petitioner is stated to have approached the Debts Recovery Tribunal, Hyderabad, under the Recovery of Debts and Bankruptcy Act by filing O.A. No.554 of 2011 (New O.A. No.410/2017). The Recovery Tribunal, Hyderabad Bench, allowed the said O.A. by order dated 23.11.2017 and issued Recovery Certificate *vide* RC No.2894/2017. Petitioner states that the Company was also liable to various other banks including IFCI and Indian Bank. A winding up petition was filed by State Bank of Mysore before the High Court of Karnataka, in which an Official Liquidator was appointed by order dated 12.05.2014. One of the primary securities at Kolhar Industrial Area, Bidar (Karnataka), which was given on *pari passu* basis, was taken over by the Official Liquidator on 24.03.2017 pursuant to orders dated 09.03.2017 of the High Court of Karnataka, and the Company Petition is stated to be pending adjudication.

1.5. Petitioner states that in accordance with guidelines issued by the Reserve Bank of India from time to time, it caused a forensic audit of the loan account of the Company through M/s. S. Kasthurirangan & Co., who submitted their report dated 14.06.2023. The said report observed that loans were availed by producing fake and fabricated quotations and proforma invoices and loans were disbursed in lump sum on a single day or within two days, indicating that the loans were not utilized for the purposes for which they were sanctioned. It was further observed that none of the suppliers mentioned in the proforma invoices were located at the stated addresses.

1.6. Petitioner further submits that the forensic audit observed that land in Survey No.64, admeasuring Ac.1.72 guntas at Bairagiguda, Peeramcheruvu, Rajendranagar Mandal, was valued by Mr. Satyanarayana at Rs.6.20 crores per acre, resulting in an aggregate valuation of Rs.10.66 crores *vide* report dated 11.06.2009, and valuation appeared to be inflated by at least 40% higher than prevailing market value, implying collusion between valuer and borrower. It is contended, term loans and corporate loan were disbursed and utilized in a

manner indicating that they were not used for the sanctioned purpose.

1.7. Petitioner states that the Company, represented by its Directors namely (a) Venkat Ramana Kalavakolanu (DIN:00176000), (b) Kyoganahalli Nanjundiah Guha (DIN:00580848), (c) Rudolf Tanner (DIN:00323714) and (d) Srinivasan Chakravarthi Mandayam (DIN:00125504), approached Petitioner Bank for availing credit facilities under a multiple banking arrangement on the pretext of upgrading their manufacturing units. There is an apprehension that the said Directors used a fraudulent Net Worth Certificate issued by M/s A. Vijay Kumar and Co. dated 04.11.2008 to mislead and manipulate the Bank into granting the credit facilities which were thereafter misappropriated and not utilized for the sanctioned purpose.

1.8. Petitioner is stated to have followed due procedure for declaration of account as 'fraud' and issued a show cause notice dated 11.09.2023 to the primary borrower and guarantors. The notices sent to the last known addresses were returned unserved and thereafter, in accordance with procedure, account was classified as 'fraud' account and the same was reported to RBI vide Reference No.UCO2304-0073

dated 11.12.2023. The Company had availed loan facilities from various other financial institutions aggregating to nearly Rs.300 crores and that such banks formed a Joint Lenders Forum and declared the account as fraud after forensic audit. Petitioner contends that on a complaint lodged by IFCI, FIR No.RC0352022A0007 dated 28.03.2022 was registered by CBI, ACB, Hyderabad and the matter is pending.

1.9. The Reserve Bank of India, in exercise of its powers under Section 35A of the Banking Regulation Act, 1949 issued Master Circulars on "Frauds Classification and Reporting", including Master Circular No.RBU 2009-10/58 dated 01.07.2009 and Master Circular No.RBI/DBS/2016-17/28 dated 01.07.2016 (updated as on 03.07.2017), detailing the authorities to whom fraud cases are to be reported under Guideline No.6.1. As per Guideline No.6.1, fraud involving more than Rs.3 crores up to Rs.25 crores is required to be reported to CBI depending upon involvement of bank officials, and fraud exceeding Rs.25 crores is required to be reported to the Banking Security and Fraud Cell of CBI irrespective of involvement of bank officials. The Petitioner further submits that under Master Direction No.RBI/2024-25/118 dated 15.07.2024, the threshold

for reporting to CBI has been revised from Rs.3 crores to Rs.6 crores.

1.10. Petitioner states that since the fraud committed by the Company aggregates to Rs.47.37 crores, it is obligated to report the same to CBI. Accordingly, Petitioner submitted complaint dated 29.04.2024 in the prescribed format to Respondent No.3, which, by communication dated 31.07.2024, pointed out certain discrepancies and further informed that complaint was closed in view of withdrawal of general consent under Section 6 of the Delhi Special Police Establishment Act, 1946 vide G.O.Ms.No.51 dated 30.08.2022. In compliance with the defects pointed out, it submitted a revised complaint dated 28.11.2024. By letter dated 16.12.2024 bearing No.DPHYD/C5/2024/RA0352024A0023/2261, Respondent No.3 treated the complaint as closed, *inter alia* on the ground that in view of G.O.Ms.No.51 dated 30.08.2022, it cannot register a case without prior approval of the Government of Telangana.

1.11. Being a nationalized bank, petitioner is bound by the RBI Master Circulars and Master Directions and is obligated to report fraud cases exceeding Rs.6 crores to CBI and that it is not competent to directly seek consent from the State

Government under Section 6 of the DSPE Act, and that such consent is required to be sought by Respondent No.3. The Government of Telangana has been issuing case-specific consent on requests made by Respondent No.3 and that in other similar cases, Respondent No.3 approached Respondent No.1 and obtained consent. Refusal of Respondent No.3 to register the complaint dated 28.11.2024 solely on the ground of withdrawal of general consent, without seeking case-specific consent, is arbitrary, contrary to the RBI Master Direction No.RBI/2024-25/118 dated 15.07.2024, violative of statutory norms and infringes Article 14 of the Constitution of India.

2. Respondent No.1 field a counter contending that the Government of Telangana has withdrawn the general consent granted under Section 6 of the 1946 Act, *vide* G.O.Ms.No.51. Home (Special) Department, dated 30.08.2022. Petitioner filed a written complaint dated 29.04.2024 before Respondent No.3 alleging loan fraud by M/s Jupiter Bio Sciences Limited and others, and the said complaint was not registered by Respondent No.3 citing certain discrepancies and in view of withdrawal of general consent under Section 6 of the Delhi Special Police Establishment Act, 1946. The facts referred to by Petitioner in paragraphs 13, 15 and 16 of the writ petition

pertain to proceedings before the Central Bureau of Investigation and that the answering respondent is not in a position to comment upon the same.

2.1. As per Petitioner's version, a revised complaint dated 28.11.2024 was submitted after complying with the objections raised by Respondent No.3, but the same was also treated as closed, *inter alia* on the ground of withdrawal of general consent by the State Government under Section 6 of the Delhi Special Police Establishment Act, 1946 vide G.O.Ms.No.51 dated 30.08.2022. If the Central Bureau of Investigation forwards a proposal seeking specific consent of the State Government in respect of the subject matter of the complaint, the Government of Telangana would consider such proposal on its own merits. On receipt of such a proposal from Respondent No.3, and upon being satisfied with the necessity for investigation into the alleged fraudulent and manipulative acts of M/s. Jupiter Bio Sciences Limited and others, appropriate permission under Section 6 of the 1946 Act would be accorded for registration and investigation of the case on merits.

3. Respondent No.3 also filed counter affidavit contending that complaint dated 29.04.2024 submitted by Shri N. Srikanth, DGM & Zonal Manager, UCO Bank, Hyderabad,

regarding the alleged fraud committed by M/s Jupiter Bio Sciences Ltd. in the account maintained at Kukatpally Branch, was received and examined by the office of the Central Bureau of Investigation, ACB, Hyderabad. Vide letter dated 31.07.2024, certain discrepancies were communicated to Petitioner in respect of the complaint dated 29.04.2024; the internal investigation report was not enclosed and the ABBFF (Advisory Board for Banking and Financial Frauds) report was also not enclosed. It is further stated, inconsistent figures were mentioned in the complaint with regard to wrongful loss and outstanding amounts, namely Rs.47.37 crores, Rs.47.38 crores and Rs.34.50 crores at different places, and the outstanding amount was mentioned as Rs.34.49 crores, which were stated to be contradictory.

3.1. Availability of original documents was left blank in the complaint dated 29.04.2024. It is also stated that although show cause notice dated 11.09.2023 had been issued to the borrower/guarantor prior to classification of the account as fraud and intimation had been served after reporting to RBI, the complaint did not contain the specific averment that the proposed accused/borrower was accorded appropriate opportunity and was heard vis-à-vis the allegations and that the

complaint was submitted after reconciling the submissions of the proposed accused with the findings of the forensic audit/transaction audit report.

3.2. Respondent No.3 states that in the complaint at point No.9, it was stated that the Bank was uncertain about the role of its officials and requested examination of involvement of unknown public servants; whereas at point No.12, action taken by the Bank against public servants including departmental proceedings was mentioned as "NA"; and at point No.13, it was stated that internal investigation was conducted and no staff side lapses were reported. According to Respondent No.3, these statements were contrary to one another. In view of G.O.Ms.No.51 dated 30.08.2022 issued by the Government of Telangana withdrawing general consent under Section 6 of the 1946 Act, the complaint could not be registered without approval of the State Government and therefore the complaint dated 29.04.2024 was closed and intimation was given to the Petitioner.

3.3. Respondent No.3 states that a revised complaint dated 28.11.2024 bearing the same reference was thereafter received and examined. It is submitted that along with the revised complaint, the "Advice of ABBFF" dated 08.11.2024 was

enclosed, wherein it was mentioned that a fire accident had occurred at the concerned branch September, 2013 which destroyed almost all the records of the account, and that establishing criminality against staff members was not possible in the absence of records. Respondent No.3 contends that in paragraph 14 of the revised complaint dated 28.11.2024 under the heading "Availability of Original Documents", it was stated that all relevant original documents were available with the Asset Management Branch, Hyderabad and were under safe custody, which was stated to be contrary to the contents of the ABBFF advice referring to destruction of records in the fire accident.

3.4. Respondent No.3 submits that *vide* letter No.DPHYD/C5/2024/RA0352024A0023/2261/2262, discrepancies were again intimated to Petitioner in respect of the revised complaint. It is contended that the internal investigation report was still not enclosed and that the authorization guidelines/circular of the Bank authorizing the complainant to sign and submit the complaint, as well as guidelines regarding filing of complaint without approval of the CVO, were not enclosed. It is reiterated that in view of G.O.Ms.No.51 dated 30.08.2022 issued by the Government of

Telangana withdrawing general consent under Section 6, it cannot register the complaint without prior approval of the Government of Telangana and that this position was communicated to Petitioner while closing the revised complaint dated 28.11.2024.

3.5. Respondent No.3 further states that CBI case RC0352022A0007 dated 28.03.2022 had already been registered on the complaint of IFCI Ltd. under Sections 120B read with 420 IPC and Section 13(2) read with 13(1)(d) of the Prevention of Corruption Act, 1988 against M/s. Jupiter Biosciences Ltd. and others, and that charge-sheet was filed on 29.11.2023 against M/s Jupiter Biosciences Ltd. and Shri K. Venkata Ramana before the Court of the XXI Additional Chief Metropolitan Magistrate, Nampally, Hyderabad. It is submitted that the first complaint by the present Petitioner was received on 29.04.2024, after filing of the charge-sheet in the said case. Respondent No.3 contends that it has not refused to deal with the complaints but has processed both complaints dated 29.04.2024 and 28.11.2024, assigned them numbers RA03520240017 and RA0352024A0023 respectively, and intimated discrepancies. It is asserted that CBI has not barred

Petitioner from filing a fresh complaint after removing all discrepancies and contrary statements.

3.6. Respondent No.3 submits that there is no inaction on its part, as both complaints were dealt with and closed after reporting discrepancies and informing Petitioner of the prevailing circumstances arising from withdrawal of general consent under G.O.Ms.No.51 dated 30.08.2022. It is contended that before approaching the State Government for specific consent, the complaint should be free of discrepancies, and that in view of withdrawal of general consent, it cannot register the complaint without approval of the State Government.

4. Heard learned counsel for petitioner Sri G. Kalyan Chakravarthy, learned Government Pleader for Home for Respondents 1 and 2 and Sri T. Srujan Kumar Reddy, Special Public Prosecutor for CBI appearing for Respondents 3 and 4.

5. From a perusal of the material on record, it is to be noted that Company availed two term loans and one corporate loan aggregating to Rs.56 crores during 2008 and 2009. The loan account was classified as Non-Performing Asset on 31.03.2011 with total dues aggregating to Rs.47.37 crores, excluding applicable interest and charges. Proceedings under the SARFAESI Act were initiated by issuance of notice under

Section 13(2) dated 03.04.2011 and under Section 13(4) dated 20.09.2011, culminating in e-auctions held on 12.03.2013 and 23.10.2013, yielding Rs.2.90 crores. Thereafter, O.A. No.554 of 2011 (New O.A. No.410/2017) was allowed by the Debts Recovery Tribunal, Hyderabad on 23.11.2017 and Recovery Certificate No.2894/2017 was issued.

6. It is also not in dispute that pursuant to RBI guidelines, Petitioner caused forensic audit through M/s S. Kasthurirangan & Co., whose report dated 14.06.2023 recorded serious irregularities including alleged fabrication of quotations and proforma invoices, lump sum disbursement of term loans within one or two days indicating diversion of funds, and inflated valuation of land in Survey No.64 at Rs.6.20 crores per acre aggregating to Rs.10.66 crores, allegedly about 40% higher than prevailing market value. These findings formed the basis for classification of the account as fraud. Petitioner issued show cause notice dated 11.09.2023, thereafter classified the account as fraud in accordance with applicable procedure and reported the same to the Reserve Bank of India *vide* Reference No. UC02304-0073 dated 11.12.2023. The amount involved in the fraud is stated to be Rs.47.37 crores, which is far in excess of the threshold prescribed under the RBI Master Directions.

7. The RBI Master Circular No.RBI/DBS/2016-17/28 dated 01.07.2016 (updated on 03.07.2017), read with Master Direction No.RBI/2024-25/118 dated 15.07.2024. issued in exercise of powers under Section 35A of the Banking Regulation Act, 1949, mandates reporting of fraud cases exceeding Rs.6 crores to the Central Bureau of Investigation. The statutory character of directions issued under Section 35A is well recognized. Consequently, once a fraud exceeding Rs.6 crores is detected and classified, a reporting bank is under a binding obligation to report the matter to CBI in the prescribed format. In compliance with the said mandate, Petitioner submitted complaint dated 29.04.2024 to Respondent No.3, which admitted that complaint was received and assigned No.RA03520240017 and that discrepancies were communicated by letter dated 31.07.2024. A revised complaint dated 28.11.2024 was also received and assigned No.RA0352024A0023 and further discrepancies were intimated by letter dated 16.12.2024.

8. The principal ground on which Respondent No.3 declined to register a case is withdrawal of general consent under Section 6 of the Delhi Special Police Establishment Act,

1946 by the Government of Telangana *vide* G.O.Ms.No.51 dated 30.08.2022. Section 6 stipulates that members of the Delhi Special Police Establishment shall not exercise powers and jurisdiction in a State without the consent of the Government of that State. Upon withdrawal of general consent, case-specific consent is required.

9. Respondent No.1, in its counter affidavit, has unequivocally stated that if CBI forwards a proposal seeking specific consent in respect of the subject complaint, the Government of Telangana would consider the same on merits and, upon being satisfied with the necessity of investigation, accord permission under Section 6 of the DSPE Act. Thus, the statutory mechanism for obtaining consent is neither closed nor unavailable; it merely requires initiation by the investigating agency. The stand of Respondent No.3 is that before approaching the State Government for specific consent, the complaint must be free from discrepancies. This Court is unable to accept that such discrepancies, even if assumed to exist, can operate as a jurisdictional embargo against registration of a case in respect of a fraud quantified at Rs.47.37 crores, supported by a forensic audit report dated 14.06.2023 and preceded by classification as fraud and reporting to RBI.

10. It is relevant to note that in respect of the same borrower, on the complaint of IFCI, CBI case RC0352022A0007 dated 28.03.2022 was registered and charge-sheet was filed on 29.11.2023 before the XXI Additional Chief Metropolitan Magistrate, Nampally, Hyderabad. This fact demonstrates that investigation by CBI into transactions of the said Company is neither unprecedented nor legally impermissible. The scheme of the DSPE Act contemplates that the investigating agency, upon receipt of information disclosing commission of a cognizable offence, proceeds in accordance with law and, where required, seeks consent from the State Government. The reporting bank has no statutory competence to seek consent under Section 6 and obligation cast upon Petitioner flows from RBI directions; the power and responsibility to seek consent rests with the investigating agency.

11. If Respondent No.3, after receiving the complaint and assigning it a registration number for scrutiny, were to refrain from taking further steps solely on the ground of absence of general consent, without initiating the process for obtaining specific consent, the statutory reporting framework under the RBI Master Directions would be rendered nugatory.

Such an interpretation would create a legal vacuum whereby frauds of substantial magnitude escape investigation on account of procedural impasse.

12. The discrepancies pointed out by Respondent No.3 pertain to internal investigation reports, ABBFF advice, inconsistent figures and certain contradictory statements. These are matters capable of clarification or investigation during the course of enquiry. They do not negate the existence of an allegation of fraud involving Rs.47.37 crores. Registration of a case is not an adjudication on merits but initiation of investigative process. The threshold for such initiation cannot be elevated to a standard that defeats statutory mandates. Respondent No.3 itself asserts that it has not barred Petitioner from filing a fresh complaint and is ready to deal with the matter after removal of discrepancies. Respondent No.1 has expressed willingness to consider a proposal for specific consent. In such circumstances, continued inaction in not initiating steps to seek specific consent and proceed in accordance with law lacks reasonable justification.

13. Article 14 of the Constitution mandates that State action must be fair, non-arbitrary and in conformity with law. Where a statutory authority is vested with power coupled with

duty, such power must be exercised in furtherance of the statutory scheme. Refusal to exercise jurisdiction on grounds not germane to the object of the statute would amount to arbitrariness. This Court is therefore of the considered view that while Respondent No.3 was justified in pointing out discrepancies for purposes of completeness, it was not justified in treating the withdrawal of general consent as an absolute bar and in refraining from initiating the process for obtaining case-specific consent from the State Government in a matter involving alleged fraud of Rs. 47.37 crores. The inaction of Respondent No.3 in taking steps to seek specific consent under Section 6 of the DSPE Act and to proceed in accordance with law, despite statutory reporting obligations arising under RBI Master Direction No.RBI/2024-25/118 dated 15.07.2024, is arbitrary and unsustainable in law.

14. Accordingly, the Writ Petition is allowed. Respondent No.3 is directed to process the complaint dated 28.11.2024 of Petitioner and take appropriate steps, in accordance with Section 6 of the Delhi Special Police Establishment Act, 1946, to seek specific consent from Respondent No.1 for investigation of the allegations pertaining to M/s Jupiter Bio Sciences Limited involving fraud quantified

at Rs.47.37 crores. Upon receipt of such proposal, Respondent No.1 shall consider the same on its own merits, in accordance with law, and pass appropriate orders expeditiously. In the event of grant of consent, Respondent No.3 shall proceed to register a case and conduct investigation strictly in accordance with law. No costs.

15. Pending miscellaneous applications, if any, shall stand closed.

SD/- S. MALLIKARJUNA RAO
ASSISTANT REGISTRAR

//TRUE COPY//

SECTION OFFICER

To,

1. The Principal Secretary, Home Department, The State of Telangana, Secretariat, Hyderabad.
2. The Director General of Police, Telangana State, Hyderabad.
3. The Head of Branch and DIG, The Central Bureau of Investigation (CBI), Kendriya Sadan, 3rd, Sultan Bazar Road, Koti, Hyderabad-500 095,
4. The Superintendent of Police, Bank Complaint Cell, C.B.I Head Office, 5th Floor, CGO Complex, Lodhi Road, New Delhi - 110003.
5. One CC to SRI G. KALYAN CHAKRAVARTHY, Advocate [OPUC]
6. One CC to SRI P. SUJAN KUMAR REDDY, SC FOR CBI [OPUC]
7. Two CCs to GP FOR HOME, High Court for the State of Telangana [OUT]
8. Two CD Copies

BN
TJ

[Handwritten signature]

HIGH COURT

DATED:05/03/2026

ORDER

WP.No.4112 of 2025

**ALLOWING THE WRIT PETITION
WITHOUT COSTS**

⑪ NT
31/3/26